



CHAPTER xxxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Bridge of Allan Water. [22nd July 1919.] A.D. 1919.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Bridge of Allan Water Order Confirmation Act 1919. Short title.

A.D. 1919.

S C H E D U L E.

BRIDGE OF ALLAN WATER.

Provisional Order to transfer the undertaking of the Bridge of Allan Water Company to the Provost Magistrates and Councillors of the burgh of Bridge of Allan and for other purposes.

WHEREAS the provost magistrates and councillors of the burgh of Bridge of Allan in the county of Stirling (hereinafter referred to as "the Town Council" and "the burgh" respectively) acting under the Burgh Police (Scotland) Acts 1892 to 1911 are the municipal local and public health authority within the burgh under those Acts and the Public Health (Scotland) Act 1897:

And whereas by the Bridge of Allan Water Company's Act 1866 the Bridge of Allan Water Company (hereinafter referred to as "the Company") were incorporated and authorised to supply water within the town of Bridge of Allan and places adjacent within the parishes of Logie and Lecropt in the counties of Stirling and Perth:

And whereas by the Bridge of Allan Water Order 1872 and the Bridge of Allan Water Order 1897 further powers for the construction of works and the raising of additional capital were conferred on the Company:

And whereas the issued capital of the Company is eleven thousand four hundred pounds divided into one thousand one hundred and forty shares of ten pounds each the whole of which is fully paid up and the Company now owe on mortgage the sum of three thousand four hundred pounds:

And whereas Edmund Pullar of Westerton House Bridge of Allan has for many years past been associated with the burgh and has also for a long period been chairman of the Company:

And whereas the said Edmund Pullar considers it desirable that the water supply of the district at present supplied by the Company should be in the hands of the Town Council and has

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accordingly proposed to make a gift to the Town Council of the undertaking of the Company to be administered by them for the benefit of the burgh and of the surrounding districts and has agreed to provide the sum payable to the Company under this Order in respect of the transfer of their undertaking to the Town Council: A.D. 1919.

And whereas the Company are willing that such transfer should be carried out upon the terms and conditions contained in this Order:

And whereas it is expedient that such transfer should be sanctioned and that such powers should be conferred on the Town Council in relation to the undertaking of the Company as are contained in this Order:

And whereas under and by virtue of the Stirling Waterworks Acts 1848 to 1893 the Stirling Waterworks Commissioners are authorised to supply water within the parliamentary burgh of Stirling the parishes of Stirling and St. Ninians and the said parish of Logie so far as the said parishes are outwith the said burgh of Stirling:

And whereas a portion of the said parish of Logie is situate within the boundaries of the burgh and in view of the transfer of the undertaking of the Company to the Town Council it is expedient that the power of the said commissioners to supply water within that portion of the said parish should cease except so far as is otherwise provided by this Order:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Bridge of Allan Water Order 1919. Short title.

2. This Order except where otherwise expressly provided shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.” Commencement of Order.

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Incorporation of Acts.

3. The following Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are hereby incorporated with this Order (that is to say):—

(1) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of that Act;

(b) the provisions thereof with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts:

(2) The Waterworks Clauses Act 1863 except section 16 of that Act Provided that—

(a) the Town Council shall not be obliged to furnish a supply of water to any person for any less sum than five shillings in any one year;

(b) the water to be supplied by the Town Council need not be constantly laid on under pressure during the execution of necessary repairs renewals or alterations.

This Order shall be deemed to be a special Act within the meaning of the Acts wholly or partially incorporated with this Order.

Interpretation.

4. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts incorporated therewith have the same respective meanings:

The expression “the burgh” means the burgh of Bridge of Allan in the county of Stirling;

The expression “the Town Council” means the provost magistrates and councillors of the burgh;

The expression “the Company” means the Bridge of Allan Water Company;

The expression “the appointed day” means the fifteenth day of May one thousand nine hundred and nineteen;

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The expression "the undertaking of the Company" includes the whole of the water undertaking of the Company and all the Company's other property and assets heritable and moveable of any description and all the Company's powers rights and privileges as the same respectively stood at the fifteenth day of May one thousand nine hundred and nineteen; A.D. 1919.

The expression "the date of transfer" means the day on which the sum of seventeen thousand and eighty pounds with interest thereon at the rate of five pounds per centum per annum from the appointed day is paid by the Town Council to the Company;

The expression "the water undertaking" means the undertaking of the Company as transferred by this Order;

The expression "the Company's Acts" means the Bridge of Allan Water Company's Act 1866 the Bridge of Allan Water Order 1872 and the Bridge of Allan Water Order 1897.

5. The limits for the supply of water by the Town Council under this Order (in this Order called "the limits of supply") shall be the existing limits of the Company for the supply of water. Limits of Order.

6. As from the appointed day the power of the Stirling Waterworks Commissioners to supply water (except as hereinafter provided) in that part of the parish of Logie in the county of Stirling which is within the boundaries of the burgh shall cease and the Stirling Waterworks Acts 1848 to 1893 so far as the same authorise such supply are hereby repealed Provided that this section shall not repeal or affect the powers of the said commissioners under the said Acts to supply water in bulk by agreement to the Town Council and to lay mains pipes and other works for the purposes of such supply. Repeal of power of Stirling Waterworks Commissioners to supply water in part of limits of supply.

7. Subject to the provisions of this Order the Company shall sell to the Town Council and the Town Council shall purchase from the Company the undertaking of the Company for the sum of seventeen thousand and eighty pounds and such sale and purchase shall take effect as from the appointed day The said sum of seventeen thousand and eighty pounds together with interest thereon at the rate of five pounds per centum Sale and purchase of undertaking of Company.

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A.D. 1919. — per annum from the appointed day shall be paid as soon as conveniently may be after the commencement of this Order.

Transfer of
water under-
taking.

8. On the date of transfer the undertaking of the Company shall by virtue of this Order be transferred to and vested in the Town Council as from the appointed day for the same estate and interest as the Company held the same but discharged from all mortgages charges and other incumbrances affecting the same other than feu duties rents and other annual payments and duplicands and casualties exigible in respect of land water or other property forming part of the undertaking of the Company.

Application
of Com-
pany's Acts
to Town
Council.

9. As from the date of transfer all the powers rights privileges authorities duties and obligations conferred or imposed on the Company by the Company's Acts shall by virtue of this Order be transferred to vested in and become binding on the Town Council and those Acts shall be read and have effect as if the Town Council had been therein named instead of the Company subject nevertheless to the provisions of the section of this Order of which the marginal note is "Application to burgh of provisions of Burgh Police (Scotland) Acts relating to water supply" and subject also and according to the following exceptions and provisions:—

(1) The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 and of the Companies Clauses Act 1863 incorporated with the Company's Acts shall not apply to the Town Council:

(2) None of the provisions of the Company's Acts or of any Act incorporated therewith relating to any share or loan capital of the Company or to any limitation of the amount of profit to be received by the Company or undertakers or to the constitution meetings or directors of the Company shall apply to the Town Council.

Company
to pay out-
goings and
to be entitled
to receipts
till transfer.

10. The Company shall pay and discharge all debts (including mortgage debts) outgoings and liabilities owing or incurred by them prior to the appointed day and may receive and retain all water rates and other debts due to them and shall be entitled to all other receipts from the undertaking of the Company up to the appointed day Provided that nothing

in this Order shall entitle the Company to retain for their own benefit so much of any water rates rents or charges or other payments paid or payable in advance as shall be attributable to any period after the appointed day but such rates rents charges and other payments shall be apportioned and so much thereof as is attributable to any period after the appointed day shall be paid over by the Company to the Town Council. A.D. 1919.

11. If at the date of transfer any action or other proceeding or any cause of action or proceeding is existing by or against the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer but the same may be continued prosecuted and enforced by or against the Town Council as and when it might have been continued prosecuted and enforced if this Order had not been confirmed. Pending actions by or against the Company.

12. Except as is by this Order otherwise provided all purchases sales conveyances deeds contracts bonds and agreements entered into or made by the Company and in force at the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Town Council and may be enforced as fully and effectually as if instead of the Company the Town Council had been a party thereto Provided that as between the Company and the Town Council the provisions of this and the last preceding section shall not extend or be construed to relieve the Company from any payment or liability which under the section of this Order of which the marginal note is "Company to pay outgoings and to be entitled to receipts till transfer" is to be made or discharged by the Company. Contracts of Company to be binding on Town Council.

13. Until the date of transfer the undertaking of the Company shall be maintained and carried on by the Company as heretofore in the ordinary course of business but at the risk and expense and for the benefit of the Town Council Provided that the Company shall not without the previous consent in writing of the Town Council under the hand of the town clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the completion renewal and maintenance of the works and the proper conduct of the undertaking Any capital expenditure made or incurred by the Company with the consent of the Town Council shall upon the date of transfer be paid by the Town Council Provided Maintenance of undertaking by Company till transfer.

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A.D. 1919. also that the Company shall be bound to exhibit to the Town Council vouchers discharges or other evidence of any such expenditure on capital account.

Regulations
of Company
to continue
in force.

14. All byelaws rules and regulations in force at the date of transfer relating to the undertaking of the Company shall continue in force until other byelaws rules and regulations made by the Town Council for the like purposes come into force.

Receipt for
purchase
money.

15. A receipt in writing for the said sum of seventeen thousand and eighty pounds payable by the Town Council to the Company under this Order signed by two directors and the secretary or secretaries of the Company shall be conclusive evidence of the payment of the said sum and shall effectually discharge the Town Council therefrom and the Town Council shall not be bound to see to the application thereof or be accountable for the loss misapplication or non-application thereof.

Purposes
for which
Company to
continue to
subsist.

16. From and after the date of transfer the Company shall subsist only for the purpose of recovering and enforcing payment of the water rates rents and charges and other revenues due or owing to the Company previous to the appointed day and of receiving and recovering the sums (if any) payable by the Town Council to the Company as provided by this Order and paying all debts and liabilities which may be due and payable by the Company under this Order and distributing the balance of their funds and effects after deducting such payments and all the expenses of and incidental thereto among their shareholders and for winding up the affairs of the Company and for carrying into effect the provisions of this Order so far as relating to the Company and the directors of the Company who are in office at the date of transfer and the survivors and survivor of them shall continue without re-election to hold the office of directors of the Company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes hereinbefore mentioned.

Dissolution
of Company.

17. Upon the purposes specified in the immediately preceding section being fulfilled the directors of the Company or a majority of the directors shall grant a certificate to that

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effect which certificate shall be published once in the Edinburgh A.D. 1919.
Gazette and thereupon the Company shall ipso facto be
dissolved.

18. All books and documents relating to the undertaking of the Company which if this Order had not been confirmed would have been received in evidence shall be received in evidence as if this Order had not been confirmed. Books &c. to be receivable in evidence.

19. As from the date of transfer the following sections of the Bridge of Allan Water Company's Act 1866 namely:—
Section 46 (Supply of water for domestic purposes);
Section 47 (Water for purposes other than domestic may be supplied by agreement);
Section 48 (Payment of rates); Application to burgh of provisions of Burgh Police (Scotland) Acts relating to water supply.

shall cease to have effect within so much of the limits of supply as is situate within the burgh and as from the date of transfer the provisions of the Burgh Police (Scotland) Acts 1892 to 1911 relating to the supply of water and to the water rates assessments and charges which may be levied and made in respect thereof shall apply to the supply of water within the burgh from the waterworks transferred to the Town Council by this Order:

Provided that—

- (1) notwithstanding anything in this Order or in section 267 of the Burgh Police (Scotland) Act 1892 the provisions of the Waterworks Clauses Act 1847 with respect to the payment and recovery of the water rates and the first proviso to the said section shall not apply within the burgh; and
- (2) the water rates assessments and charges which the Town Council are by virtue of this section authorised to impose and levy within the burgh may be imposed and levied as from the appointed day but in imposing and levying the said water rates assessments and charges the Town Council shall credit any person who may have paid the Company for a supply of water for the whole or any part of the period in respect of which the said water rates assessments and charges are imposed with the amount so paid by him to the Company.

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Application
of revenue
by Town
Council.

20. The water rates assessments rents and charges levied and received by the Town Council under the authority of this Order and the other income of the Town Council from the supply of water shall be applied in the manner and for the purposes following (that is to say):—

First in defraying the expenses of managing and maintaining the water undertaking including salaries and other payments to officers and servants and the annual costs charges and expenses of providing and supplying water (including interest on and repayment of any loans raised for those purposes by the Town Council under statutory powers) and paying any feu duties and other annual payments and duplicands or casualties exigible in respect of any land water or other property forming part of the undertaking of the Company;

Secondly in payment of such portion of the costs of enlarging or increasing renewing and from time to time extending the works mains and pipes of the Town Council as may be properly charged against the revenue of the year and any other necessary annual expenditure;

Thirdly in providing a reserve fund not exceeding in the whole the sum of three thousand pounds which the Town Council are hereby authorised to make to meet contingencies; and

Lastly the surplus (if any) from time to time shall be so applied as to facilitate the reduction of the water rates assessments and charges for the supply of water when circumstances permit such reduction to be made.

Limiting
power of
Town Coun-
cil to abstract
water.

21. The Town Council shall not construct any works for taking or intercepting water for the supply of water under this Order unless the works are authorised by and the lands upon which the same are to be constructed are specified in an Act of Parliament or Order confirmed by Parliament.

For protec-
tion of Cale-
donian Rail-
way Com-
pany.

22. Where any water main pipe or other work by this Order authorised shall pass under or across or in any way affect any railway or any bridge tunnel or other work in connection therewith or any land or property road or street belonging to the Caledonian Railway Company the following provisions shall apply and have effect unless otherwise agreed in writing

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between the Town Council and the Caledonian Railway Company :— A.D. 1919.

- (1) The whole works connected with such water main pipe or other work so far as affecting any railway or bridge tunnel or other work or any land or property road or street as aforesaid shall be executed and thereafter maintained under the superintendence and to the reasonable satisfaction of the Caledonian Railway Company and according to plans and specifications to be previously submitted to the Caledonian Railway Company and approved by them Provided that if the Caledonian Railway Company shall not have expressed approval or disapproval of such plans and specifications within twenty-one days after the same shall have been submitted to them they shall be deemed to have approved thereof:
- (2) Such works and any alteration which it may at any time be necessary to make in such works may be executed either by the Town Council or by the Caledonian Railway Company at the option of the Caledonian Railway Company :
- (3) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the Caledonian Railway Company from maintaining repairing reconstructing altering renewing deviating widening or enlarging their lines of railway and other works or property without incurring any liability to the Town Council for any loss injury damage or expense which may arise from any such works or operations on the part of the Caledonian Railway Company as aforesaid unless the same shall arise from some neglect or default of the Caledonian Railway Company or their agents workmen or servants in carrying out such works or operations Provided that in the event of the Caledonian Railway Company carrying out any such works and operations they shall do so in such manner as to cause as little damage and interference as practicable to and with any water mains pipes or other works of the Town Council and so as not to interfere with the supply of water through the same and shall give (except in case of emergency in which

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case notice shall be given as soon as reasonably possible) fourteen days' previous notice in writing to the Town Council before commencing any such works or operations which may affect any of the said water mains pipes or other works of the Town Council:

- (4) In the event of the Town Council and the Caledonian Railway Company differing in opinion in regard to any works affecting the railway or bridge tunnel or other work or as to the mode of carrying out such works or otherwise in relation thereto such difference shall be determined by an arbiter to be agreed upon by the Town Council and the Caledonian Railway Company or failing agreement to be nominated by the Board of Trade on the application of either party.

Power to lay pipes in streets not dedicated to public use.

23. The Town Council may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to the public use supply such premises with water and may lay down take up alter relay and renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if such street were a street within the meaning of those Acts.

Town Council not bound to supply several houses by one pipe.

24. The Town Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Byelaws for preventing waste &c. of water.

25.—(1) The Town Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

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(2) All byelaws made under this section which affect any district beyond the burgh shall be subject to the approval of the local authority of such district. Provided that such approval shall not be necessary where in the opinion of the Local Government Board for Scotland it has been unreasonably withheld. A.D. 1919.

(3) Byelaws made under this section shall apply only in the case of premises to which the Town Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 316 to 323 of the Burgh Police (Scotland) Act 1892 shall apply to all byelaws so made.

(4) In case of failure by any person to observe byelaws made under this section for the time being in force the Town Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Town Council as the water rates or assessments in respect of the premises are recoverable.

26. The Town Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply to houses partly used for trade.

27. The Town Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such local authority company or person in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that a supply of water under this section shall not prejudicially affect or restrict the supply of water from time to time for any purpose within the limits of supply. Provided further that a supply of water under this section shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority within the district in which the supply is to be afforded and of the local authority of that district. Agreements for supply of water.

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Power to
sell meters.

28. The Town Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they may think fit. The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Town Council to let for hire any water fittings to any person supplied by them with water.

Notice to
Town Council of connecting or disconnecting meters.

29. Before any person connects or disconnects any meter by means of which any of the water of the Town Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Town Council of his intention so to do and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Town Council and any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

Notice of
discontinuance.

30. A notice to the Town Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Town Council or be given personally by the consumer at the office of the Town Council.

Costs of
Order.

31. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Town Council out of the revenue of the water undertaking.

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